

Delaware County Commissioners Meeting February 18th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=8bESnCJeN0Y
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Delaware County Commissioners Meeting Report

Meeting Date: Tuesday, February 18, 2025

Time: 9:00 AM

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding Officer President Henry opened the Delaware County Commissioner's meeting at 9:00 AM. The meeting was opened with the Pledge of Allegiance.
- **Attendance:**
 - **Present:** Commissioner President Henry, Commissioner Stephen Brand, Commissioner Shannon Reagan.
 - **Absent:** None.
 - **Presiding Officer:** President Henry.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.

- **Approval of Minutes:**
 - **Item Identifier & Title:** 00:19:15 Approval of Minutes from the February 3, 2025 Commissioner Meeting.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Reagan - Yes, Brand - Yes, Henry - Yes).
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3. Substantive Business & Board Action

- **00:01:10 BZA Board Appointment**
 - **Sponsor / Presenter:** Board of Commissioners / Christy Nap.
 - **Deliberation Summary:** The board discussed vacancies on the Board of Zoning Appeals (BZA). One candidate withdrew due to travel commitments, leaving Christy Nap, a longtime resident of an unincorporated territory and retired associate superintendent/teacher, as the candidate.
 - **Action & Vote Disposition:** Approved Unanimously (Roll call: Reagan - Yes, Brand - Yes, Henry - Yes).
- **00:02:47 Solar Moratorium (Ordinance 2025-05 / Table Business)**
 - **Sponsor / Presenter:** Commissioner Stephen Brand.
 - **Deliberation Summary:** Commissioner Brand provided a detailed update on the solar moratorium, noting he has held approximately 40 meetings with pro, anti, and neutral groups, as well as meeting with Brook Strubel to review proposals from the League of Women Voters, National Grid Renewables, and a Wharton group. The goal is to consolidate data into a single document, send it to the Metropolitan Planning Commission (MPC) by April 3rd for a first reading/public hearing, and eventually sunset the moratorium. Brand also shared research on grid reliability statistics from PJM (citing lower reliability percentages for tracking solar compared to storage, nuclear, and natural gas) and discussed the status of State House Bill 1628 (multi-jurisdictional projects/home rule), which he noted failed to make it out of committee.
 - **Action & Vote Disposition:** Taken off the table and later adopted via Ordinance 2025-05. Approved Unanimously (Roll call votes recorded for taking off table and final adoption: Reagan - Yes, Brand - Yes, Henry - Yes).
- **00:14:14 Highway Road Paving Project Bids & Material Bids**
 - **Sponsor / Presenter:** Angie (Highway Department).
 - **Deliberation Summary:** The board reviewed bid tabulation sheets for highway material and paving projects funded 50% by community crossing grant funds. While AMV Paving was the low overall bidder, Brooks Construction submitted a lower bid by roughly \$7,000 for County Road 650 South. The board agreed to request approval from INDOT to split the award if allowable. For annual material bids (asphalt mixes, liquid asphalt, crushed stone, sand, and fuel), the board followed traditional practice to award all bids to give the department geographic flexibility.

- **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously to split bids if allowable (and award others), and to approve all material bids as submitted (Roll call: Reagan - Yes, Brand - Yes, Henry - Yes).
- **00:28:37 Vending Contract Approval**
 - **Sponsor / Presenter:** Daniel / Legal Counsel.
 - **Deliberation Summary:** Pursuant to state mandate (IC 12-12-5-1), counties must provide sole vending opportunities in buildings to the Bureau of Disabilities and Aging Services (Blind and Visually Impaired Enterprise program) to provide remunerative employment.
 - **Action & Vote Disposition:** Approved Unanimously (Roll call: Reagan - Yes, Brand - Yes, Henry - Yes).
- **00:30:06 Crown Castle Consent Letter & Lease Terms**
 - **Sponsor / Presenter:** Legal Counsel / Commissioners.
 - **Deliberation Summary:** Crown Castle requested consent to transfer service to AT&T at the highway garage tower (Route 32), alongside a lease extension term sheet. The term sheet proposes raising the monthly lease from \$700 to \$825/month (effective Oct 1, 2027) with a 10% rate increase every 3 years starting in 2032, a 30-year lease extension (expiring 2057), a 15% revenue-sharing agreement for future tenants, and a right of first refusal. Legal counsel and commissioners advised against waiving the "consent to sublease" language, as it serves as the notification mechanism for tracking new tenants and revenue sharing.
 - **Action & Vote Disposition:** Declined the consent-to-sublease waiver while accepting the underlying term sheet amendments. Approved Unanimously (Roll call: Brand - Yes, Reagan - Yes, Henry - Yes).
- **00:34:50 Pitney Bowes Software Renewal**
 - **Sponsor / Presenter:** Sarah / Administration.
 - **Deliberation Summary:** Renewal contract for certified mail software. The current price of \$286.98/month will decrease to \$218.73/month over a 48-month term. Support for the legacy software is ending.
 - **Action & Vote Disposition:** Approved Unanimously (Roll call: Brand - Yes, Reagan - Yes, Henry - Yes).
- **00:36:12 Funding for IRAX and Unsafe Housing**
 - **Sponsor / Presenter:** Commissioners.
 - **Deliberation Summary:** The board addressed funding requests from IRAX (requesting \$75,000 for their jail-based program) and Tom Foucher for unsafe housing demolitions (\$50,000). Due to EDIT plan expiration limits, the board proposed funding IRAX with \$50,000 from EDIT Project 4 (Economic Development) with the potential to revisit the remaining \$25,000 during the next 4-year EDIT plan cycle, and funding unsafe housing with \$50,000 from EDIT Project 11 (Building Upgrades/Maintenance).

- **Action & Vote Disposition:** Approved Unanimously (Roll call: Reagan - Yes, Brand - Yes, Henry - Yes).
- **00:39:13 ECI RPD Economic Development Contract**
 - **Sponsor / Presenter:** Angie / Bill Walters (ECI RPD).
 - **Deliberation Summary:** Bill Walters presented a contract to run Delaware County's economic development. The commissioners proposed tabling the contract to allow Walters to revise the parameters, potentially focusing strictly on the international portion of economic development.
 - **Action & Vote Disposition:** Tabled by Voice Vote / Passed Unanimously (Roll call: Brand - Yes, Reagan - Yes, Henry - Yes).
- **00:40:33 Ordinance 2025-03: Creating New Fund for Adult Drug Court Grant**
 - **Sponsor / Presenter:** Jane Miranda (Community Corrections).
 - **Deliberation Summary:** Second reading of an ordinance creating a dedicated fund to track a small grant (<\$10,000 from the Indiana Office of Court Services) used for training, drug screens, treatment costs, and participant incentives.
 - **Action & Vote Disposition:** Adopted Unanimously (Roll call: Brand - Yes, Reagan - Yes, Henry - Yes).
- **00:41:56 Ordinance 2025-04: Creating New Fund for Veterans Treatment Court Grant**
 - **Sponsor / Presenter:** Jane Miranda (Community Corrections).
 - **Deliberation Summary:** Second reading of an ordinance creating a dedicated fund for the Delaware County Veterans Treatment Court grant (<\$10,000).
 - **Action & Vote Disposition:** Adopted Unanimously (Roll call: Brand - Yes, Reagan - Yes, Henry - Yes).
- **00:42:19 Ordinance 2025-05: Solar Energy Moratorium**
 - **Sponsor / Presenter:** Commissioners.
 - **Deliberation Summary:** Second reading and formal adoption of the solar moratorium ordinance following its removal from the table.
 - **Action & Vote Disposition:** Adopted Unanimously (Roll call: Brand - Yes, Reagan - Yes, Henry - Yes).
- **00:43:04 Resolution 2025-02: 2024 Zoning Map Changes**
 - **Sponsor / Presenter:** Kylene Swackhammer (Plan Commission).
 - **Deliberation Summary:** Annual approval and compilation of the three county zone changes that occurred throughout 2024 to update official GIS mapping.
 - **Action & Vote Disposition:** Approved Unanimously (Roll call: Brand - Yes, Reagan - Yes, Henry - Yes).
- **00:44:22 Property Tax Printing and Postage Contract (Master's Touch LLC)**
 - **Sponsor / Presenter:** Brad Pulley (Treasurer).
 - **Deliberation Summary:** The Treasurer requested approval for the Master's Touch LLC printing and postage contract for roughly 65,500 property tax statements, totaling an estimated \$34,533. The contract includes e-notice enrollment and

recurring payment features to ease postage burdens and allow flexible taxpayer payments. The Treasurer intends to pull \$5,000 to \$7,000 from his internal postage budget line to offset the total cost.

- **Action & Vote Disposition:** Approved up to \$34,533, noting the Treasurer's office will draw \$5,000<U+2013>\$7,000 from internal postage lines. Approved Unanimously (Roll call: Reagan - Yes, Brand - Yes, Henry - Yes).
- **00:20:00 BW Construction Mental Health Facility Project Progress Report & Change Order #1**
 - **Sponsor / Presenter:** Mark Manip (BW Construction).
 - **Deliberation Summary:** Provided a construction progress update through January (site work, utility extensions, structural framing, roofing, rough-ins). Noted a slight weather- and permitting-related delay. Presented Change Order #1, extending the project duration by 63 days at **no additional cost** to the county.
 - **Action & Vote Disposition:** Change Order #1 Approved Unanimously (Roll call: Reagan - Yes, Brand - Yes, Henry - Yes).
- **00:52:20 Highway Department Building Upgrade Quotes (Salt Barn & Equipment Add-on)**
 - **Sponsor / Presenter:** Tommy Humbert (Highway Department).
 - **Deliberation Summary:** Presented quotes for building a three-sided salt barn add-on and an equipment storage lean-to (West barn add-on, 22x110 ft) to protect mowers and fairgrounds equipment. Quotes included:
 - *West Barn Add-on:* Newsome Construction (\$35,500 - Lowest); Warren Bergen & Sons (\$44,500); Iker Construction (\$44,635).
 - *Salt Barn:* Newsome Construction (\$58,216 - Lowest); Warren Bergen & Sons (\$61,870); Iker Construction (\$77,500). Funds will be drawn from the ARPA Revenue Replacement Fund, with a target completion date of June 1st.
 - **Action & Vote Disposition:** Approved bids from Newsome Construction for both structures, funded by ARPA revenue replacement. Approved Unanimously (Roll call: Brand - Yes, Reagan - Yes, Henry - Yes).
- **00:39:40 Payment of Claims, Payroll, and Financial Disclosures**
 - **Sponsor / Presenter:** Auditor's Office / Commissioners.
 - **Deliberation Summary:**
 - Claims reviewed totaling \$3,775,275.82 (Note: Commissioner Brand withheld signature on 4 sets of claims lacking descriptive line items). Disclosed major income tax distributions (Lit Certified Shares: \$1,336,948.93; Public Safety Lit: \$557,500; Edit Lit: \$891,000).
 - ARPA/Justice Center/Mental Health Facility claims reviewed totaling \$1,949,758.89 (including Justice Center/mental health facility payments, advisory fees, Selma utility and infrastructure projects).
 - Payroll approved for pay period 22 of \$1,393,803.48.
 - **Action & Vote Disposition:**

- Claims (General): Approved (Roll call: Reagan - Yes, Brand - No, Henry - Yes).
- Claims (ARPA/Capital): Approved Unanimously (Roll call: Brand - Yes, Reagan - Yes, Henry - Yes).
- Payroll: Approved Unanimously (Roll call: Reagan - Yes, Brand - Yes, Henry - Yes).

4. Open Public Comment / Citizen Forum

- **03:19:00 Linda Hansen** (1400 West North Street, League of Women Voters)
Spoke on the economic and transparency needs surrounding renewable energy, noting the death of HB 1628, warning against the financial risks of unproven Small Modular Nuclear Reactors (SMRs) pushed onto ratepayers, and urging the county to embrace solar as a transition energy source.
- **01:06:46 Holly Hanau** (4700 West Woodway Drive)
Highlighted recent media reports regarding state-local friction over home rule and renewable energy infrastructure, emphasizing that incoming businesses demand reduced carbon footprints and pointing out that continuous moratoriums hinder growth policies.
- **01:09:40 Cheryl Swingley** (Via Woods Drive)
Expressed concern regarding the imposition of a fourth moratorium, the lack of transparency on proposed ordinance text changes, and argued that renewable energy projects could secure local government and employee financial security similar to neighboring Randolph County.
- **01:13:12 Dan Barry** (2901 East County Road 800 North, Eaton)
Read a statement from Joe Russell emphasizing that solar developers bring private investments, pay higher property taxes, and ask nothing from county government, serving as a vital economic lifeline for landowners.
- **01:36:36 Ron Crouch** (2901 West County Road 700 North)
Expressed deep frustration as a recent resident in North Muncie who was unaware of impending industrial solar plans near his property. Voiced concerns over property value protection, lack of transparency from developers (National Grid), and requested strong protective setbacks in county ordinances.
- **01:31:11 Thomas Richards** (Washington Township property owner / retired farmer)
Shared photographic evidence from a solar installation in Illinois showing properties entirely surrounded by panels and warned against the long-term impact of industrial solar on prime agricultural land and multi-generational farming operations.
- **01:35:28 Stephen Hargrave** (RBE)
Provided an organizational update on RBE's local community investments, youth/educational intervention programs in schools (South View), an upcoming docu-series by Big Fish Entertainment/Amazon executives, and invited officials to a Black History celebration at Cornerstone Center for the Arts.

- **01:38:47 John Newbie** (15691 West 100 North / SWCD Supervisor)
Thanked the commissioners for ongoing support of the Soil and Water Conservation District and reminded attendees of the upcoming annual meeting on February 27th at the Knights of Columbus Family Center featuring a presentation on pollinators.
 - **01:40:33 Brian Hayes** (801 West State Road 28)
Voiced strong opposition to the placement of industrial solar fields surrounding residential properties in North Muncie, emphasizing the need for robust ordinances guaranteeing property value protection, environmental safeguards, and clear end-of-life decommissioning plans.
 - **01:45:33 Cheryl Dawson** (Intersection of State Road 28 and Wheeling Avenue)
Stated that while she is not opposed to renewable energy in principle (having studied climate issues in 1991), she is concerned that large-scale solar projects benefit only select multi-lease landowners and risk eminent domain pressures on local residents.
 - **01:49:00 Stephen Hinde** (276 Alum Avenue)
Discussed tax revenue limitations under maximum levy caps and abatements for industrial solar, invited officials to a community meeting at Ron Crouch's barn, and reiterated the absolute necessity of property value guarantees in any new ordinance.
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5. Administrative Updates & Adjournment

- **Board Announcements:**
 - Commissioner Brand reported ongoing coordination with BS Engineering and the Redevelopment Commission regarding a pedestrian trail gap at the railroad crossing on Cowan Road, noting past delays were due to railroad crossarm/signal requirements.
 - Brand provided legislative updates on state bills affecting county government, including the status of HB 1628, HB 1461 (wheel tax/community crossing grants), and SB 443 (business personal property tax).
 - President Henry invited community members to the upcoming Soil and Water Conservation District annual meeting.
 - **Adjournment:**
 - **Action & Vote Disposition:** Motion to recess/adjourn approved Unanimously (Roll call: Brand - Yes, Reagan - Yes, Henry - Yes). Meeting recessed.
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